

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-20

INTERNATIONAL EXPRESS TRUCKING, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

**MOTION FOR ORDER OF DISMISSAL WITHOUT PREJUDICE
PURSUANT TO 46 C.F.R. § 502.72(a)(3)**

The Complainant International Express Trucking, Inc. ("IXT"), through counsel, moves for an Order of Dismissal Without Prejudice of this case pursuant to 46 C.F.R. §502.72(a)(3). In support of this request, IXT states the following:

At the request of the Complainant, an action before the FMC may be dismissed without prejudice under 46 C.F.R. § 502.72(a)(3), which states:

By order of the presiding officer. Except as provided in paragraphs (a)(1) and (a)(2) of this section, an action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper. ... Unless the order states otherwise, a dismissal under this paragraph is without prejudice.

Due to the costs of litigation, IXT has no choice but to seek to dismiss this matter. Because the costs of litigation are the basis for dismissal, IXT submits that an Order of Dismissal Without Prejudice pursuant to Section 502.72(a)(3) is appropriate.

On May 7, 2023, IXT filed its complaint seeking an FMC Order waiving \$75,725.00 of per diem charges that Cosco Shipping Lines Co., Ltd. (“Cosco”) invoiced to IXT in 2022 and 2023. [Doc. No. 1]. On June 17, 2024, Cosco filed a Motion to Dismiss the Complaint as it pertained to Cosco’s U.S. agent Cosco Shipping (North America) Inc. [Doc. No. 9] Following the Order resolving its Motion to Dismiss, Cosco filed its Answer to the complaint on March 20, 2024. [Doc. No. 18]. The Parties’ discovery schedule was set on April 4, 2025. [Doc. Nos. 19-20] The Parties exchanged written discovery requests and documents. The Parties also agreed to a deposition schedule, however, no depositions have been taken due to IXT’s seeking dismissal, as discussed further below. The Parties also scheduled a mediation for June 24, 2025. While IXT made two corporate representatives available to facilitate mediation in the Zoom call, Cosco refused to send a corporate representative to participate and instead informed IXT and CADRS shortly before the mediation that its legal representatives should be able to reach a Cosco representative by phone if it proved necessary. Not surprisingly, the mediation session was wholly unproductive. The Parties have not otherwise been able to reach a resolution of this matter.

Due to the mounting costs of litigation, IXT has no choice but to seek to discontinue this matter. On August 1, 2025, IXT requested Cosco’s position on a stipulation of dismissal pursuant to 46 C.F.R. § 502.72(a)(2). On August 7, 2025, Cosco indicated that it opposed dismissal without prejudice but that it would consent to dismissal with prejudice. Cosco intends to file a response to this Motion. Thus, IXT is requesting an Order of Dismissal Without Prejudice Under 46 C.F.R. § 502.72(a)(3). Dismissal is without prejudice by default whether it is by stipulation of the parties under Section 502.72(a)(2) or by Order of the presiding officer under Section 502.72(a)(3). *See* 46 C.F.R § 502.72(a)(2) (“Unless the stipulation states otherwise, the dismissal is without prejudice”); *Id.* § 502.72(a)(3) (“Unless the order states otherwise, a dismissal under this paragraph is without

prejudice.”). IXT submits that its inability to continue funding litigation is not a basis for deviating from the default dismissal without prejudice under Section 502.72(a)(3), because the costs of litigation have been borne by both of the Parties.

WHEREFORE, IXT respectfully requests an Order of Dismissal Without Prejudice under 46 C.F.R. § 502.72(a)(3).

Dated: August 11, 2025

Respectfully Submitted,

/s/ Brendan Collins

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 11th day of August 2025, the foregoing Motion For
Order of Dismissal Without Prejudice was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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